

to give notice of defects under the Song–Beverly Act, it could have easily done so. It did not.” (*Ibid.*)

Pursuant to the holding in *Mexia*, and without even addressing whether the coolant system defect rendered the subject vehicle unfit for its ordinary purpose (see *Chiulli v. American Honda Motor Co., Inc.* (N.D. Cal. 2023) 690 F.Supp.3d 1038, 1053-1054 [defective infotainment system sufficient to assert a claim for breach of implied warranty of merchantability, even if plaintiffs continued operating the defective vehicle]), Audi Mission Viejo’s Motion for Summary Adjudication of the third cause of action fails because there is a triable issue of material fact as to whether said defects existed at the time Plaintiffs purchased the vehicle, and whether said defects were undiscoverable at the time of purchase.

Contrary to its position, the fact that Plaintiffs did not present their vehicle for repair within three months does not necessarily bar their claim. (See *Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1308-1310 [rejecting the defendants’ contention that the used boat was fit for its ordinary purpose, and did not breach the implied warranty of merchantability, because plaintiff did not discover, report, or otherwise seek repair of the alleged latent defect, until over two years from the time of purchase].)

Since Audi Mission Viejo did not meet its initial, or its ultimate, burdens as to Material Fact nos. 6 through 9, the Court shall deny the Motion for Summary Adjudication as to the third cause of action for Violation of the Song-Beverly Act – Breach of Implied Warranty.

Negligent Repair

Audi Mission Viejo moves for summary adjudication of the negligent repair cause of action, arguing this claim is barred by the economic loss rule.

“When California courts encounter a dearth of California appellate decisions on a particular legal question, they ‘often look to decisions of California federal courts and out-of-state cases in resolving’ the issue. [Citation.]” (*Fourth Inv. LP v. U.S.* (9th Cir. 2013) 720 F.3d 1058, 1069.) Unpublished federal court decisions do not violate rule 8.1115 of the California Rules of Court, and they may be cited as persuasive authority. (*In re Farm Raised Salmon Cases* (2008) 42 Cal.4th 1077, 1096, fn. 18; *Olinick v. BMG Entertainment* (2006) 138 Cal.App.4th 1286, 1301, fn. 11.)

Relevant here, numerous Federal District Courts have found the economic loss doctrine does not bar a negligent repair cause of action. (*Sabicer v. Ford Motor Company* (C.D. Cal. 2019) 362 F.Supp.3d 837, 840-842; *Luna v. Fca US, LLC* (C.D. Cal., July 31, 2020, No. 220CV2354ODWASX) 2020 WL 4383475, at *3; *Madison v. Ford Motor Company* (E.D. Cal., Aug. 6, 2019, No. 2:19-CV-00853 WBS DB) 2019 WL 3562386, at *2; *McAdams v. Ford Motor Company* (N.D. Cal., June 5, 2019, No. 18-CV-07485-LHK) 2019 WL 2378397, at *4–5; *McKeown v. Ford Motor Company* (C.D. Cal., Mar. 13, 2019, No. CV1900281CJCPLAX) 2019 WL 1199468, at *2-3; see *Cortez v. Nissan North America, Inc.* (C.D. Cal., Dec. 10, 2024, No. 2:24-CV-05909-ODW (PDX)) 2024 WL 5054378, at *6 [“ ‘District courts in California “have been virtually unanimous in rejecting the argument that a dealer is fraudulently joined because the economic loss rule bars a negligent repair claim” ’ ”].)

While Audi Mission Viejo’s Motion for Summary Adjudication cites to the general law regarding the economic loss rule, it did not cite to any cases that have applied said rule to negligent repair cases.

However, and as discussed, Federal District Courts have overwhelmingly held that the economic loss rule does not bar a negligent repair claim. The Court finds these rulings to be persuasive, and it shall follow them in this instance.

Based on the foregoing, the Court finds Audi Mission Viejo did not meet its initial burden as to its Motion for Summary Adjudication as to the fourth cause of action for Negligent Repair, such that its Motion for Summary Adjudication is denied.

Civil Penalties

In their First Amended Complaint’s Prayer for Relief no. 3, Plaintiffs seek civil penalties against Volkswagen, for \$246,054.06. (Exhibit A to Espinosa Declaration.)

In their Opposition, Plaintiffs concede this request for civil penalties should be removed, as “[t]he request for civil penalties appears to have been left in the FAC during the process of amending the original complaint to become the FAC. As such, Plaintiffs do not object if the Court strikes the request for civil penalties in the prayer for relief.”

Since Plaintiffs concede as to this point, the Court shall grant the Motion for Summary Adjudication.

		Moving parties are ordered to provide notice of the Court’s ruling.
13	Hestan Commercial Corporation vs. Purcell-Murray Company, Inc.	TENTATIVE RULING: For the reasons set forth below, Plaintiff Hestan Commercial Corporation’s Motion for Summary Judgment or, in the Alternative, Summary Adjudication is GRANTED. <u>Statement of Law</u> “A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding.” (Code Civ. Proc., § 437c, subd. (a)(1).) “The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. In determining if the papers show that there is no triable issue as to any material fact, the court shall consider all of the evidence set forth in the papers, except the evidence to which objections have been made and sustained by the court, and all inferences reasonably deducible from the evidence, except summary judgment shall not be granted by the court based on inferences reasonably deducible from the evidence if contradicted by other inferences or evidence that raise a triable issue as to any material fact.” (Code Civ. Proc., § 437c, subd. (c); <i>Carver v. Volkswagen Group of America, Inc.</i> (2024) 107 Cal.App.5th 864, 876.) “A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (Code Civ. Proc., § 437c, subd. (f)(1); <i>R.J. Land & Associates Construction Co. v. Kiewit-Shea</i> (1999) 69 Cal.App.4th 416, 424.) “A plaintiff or cross-complainant has met his or her burden of showing that there is no defense to a cause of action if that party has